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L.N. 159 of 2025

**MALTESE CITIZENSHIP ACT
(CAP. 188)**

**Granting of Citizenship for Exceptional Services
(Amendment) Regulations, 2025**

IN EXERCISE of the powers conferred by article 24 of the Maltese Citizenship Act, the President of Malta has made the following regulations:-

Citation.	1. The title of these regulations is the Granting of Citizenship for Exceptional Services (Amendment) Regulations, 2025 and these regulations shall be read and construed as one with the Granting of Citizenship for Exceptional Services Regulations, hereinafter referred to as the "principal regulations".
S.L. 188.06.	
Substitutes regulation 1 of the principal regulations.	2. Regulation 1 of the principal regulations shall be substituted by the following new regulation: "1. The title of these regulations is the Granting of Citizenship by Naturalisation on the basis of Merit Regulations."
Substitutes regulation 2 of the principal regulations.	3. Regulation 2 of the principal regulations shall be substituted by the following new regulation: "2. The scope of these regulations is to prescribe the requirements and to regulate the granting of citizenship by naturalisation on the basis of merit in accordance with article 10(9) of the Act."
Substitutes regulation 3 of the principal regulations.	4. Regulation 3 of the principal regulations shall be substituted by the following new regulation: "Interpretation. 3. In these regulations, unless the context otherwise requires: "Act" means the Maltese Citizenship Act; "Agency" means the Community Malta Agency established by the Community Malta Agency (Establishment) Order;
	Cap. 188.
	S.L. 595.38.

"applicant" means an applicant who submits an application for citizenship of Malta by naturalisation in accordance with these regulations and shall also include a main applicant who applies on his own behalf and on behalf of a dependant or a person who applies on behalf of another person, but does not include a dependant;

"application" means any proposal or application made by the applicant in accordance with these regulations;

"authenticated translation" means a translation made by a recognised translator;

"certified copy" means a photocopy of an original document certified to be a true copy of the original, by a duly warranted lawyer, notary public, commissioner for oaths, Maltese consular or diplomatic officer, in accordance with such guidelines as the Agency may issue from time to time;

"Commissioner" means the Information and Data Protection Commissioner as defined in the Data Protection Act;

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"dependant" means the family members of the main applicant in terms of these regulations, to the extent indicated and strictly related to the naturalisation process and shall include:

(a) the spouse of the main applicant in a monogamous marriage or partner in another relationship having the same or similar status to a monogamous marriage, including a civil union, domestic partnership, common law marriage, provided that for the purpose of these regulations, the term "spouse" shall be construed as gender neutral, and saving the discretion of the Minister to authorise, on a case by case basis, other relationships having a similar status as aforesaid;

(b) a child of the main applicant or of his dependant as defined in paragraph (a) including an adopted child, who has not yet attained eighteen (18) years of age at the time when the main applicant submits a proposal letter in terms of regulation 11A which is accepted by the Agency;

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(c) a child of the main applicant or of his dependant as defined in paragraph (a) including an adopted child, who has attained eighteen (18) years of age but has not yet attained twenty-nine (29) years of age, when the main applicant submits a proposal letter in terms of regulation 11A which is accepted by the Agency, and who is not married and proves, to the satisfaction of the Minister, that he is wholly maintained or otherwise largely supported by the main applicant;

(d) a child of the main applicant or of his dependant as defined in paragraph (a), including an adopted child, who at the time when the main applicant submits a proposal letter in accordance with these regulations has attained eighteen (18) years of age and is wholly maintained or otherwise largely supported by the main applicant and is a qualified person with a disability as defined in the Equal Opportunities (Persons with Disability) Act:

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Provided that where such child does not have legal capacity the provisions of article 21(3) of the Act shall apply;

"designated competent body" means the locally registered entity in Malta as designated by the Agency from time to time that is capable of determining whether an individual is recognised in a particular field as a leading talent, or has demonstrated exceptional promise and is likely to become a leading talent or is of exceptional interest to the Republic of Malta or otherwise falls within the parameters of article 10(9) of the Act;

"due diligence data" means any personal data pertaining to the applicant, or the dependant or dependants if applicable, collected and processed by the Agency as part of the due diligence process, excluding the personal data collected by the Agency directly from the applicant or the dependant or dependants, if applicable;

"Evaluation Board" or the "Board" means the group of individuals appointed in accordance with these regulations to evaluate applications made in accordance with article 10(9) of the Act and to prepare a recommendation with regard to each application to be referred to the Minister responsible for citizenship in terms of these regulations;

"exceptional" shall have the same meaning assigned to it in article 10(9) of the Act;

"exceptional contributions" shall have the same meaning assigned to it in article 10(9) of the Act;

"exceptional interest" shall have the same meaning assigned to it in article 10(9) of the Act;

"exceptional services" shall have the same meaning assigned to it in article 10(9) of the Act;

"letter of approval" means the letter issued following the approval of the application for naturalisation on the basis of merit submitted by the applicant as provided for in regulation 11B;

"letter of approval in principle" means the letter issued following the approval in principle of the proposal letter made by the applicant as provided for in regulation 11A;

"main applicant" means the person who submits an application in terms of these regulations wherein dependants are included;

"Minister" shall have the same meaning assigned to it in article 2 of the Act;

"person" means a physical person and where applicable means a legal person;

"Regulation" means Regulation (EU) 2016/679 of the European Parliament and the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC."

5. In the title of Part II of the principal regulations the words "General provisions applicable to all applications" shall be substituted by the words "Applications for citizenship by naturalisation on the basis of merit".

Amends the title of Part II of the principal regulations.

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Amends
regulation 5 of
the principal
regulations.

6. Regulation 5 of the principal regulations shall be amended as follows:

(a) sub-regulation (1) thereof shall be amended as follows:

(i) the words "A person may apply for a certificate of naturalisation under these regulations if that person:" shall be substituted by the words "A person, including a dependant of a main applicant, may qualify for a certificate of naturalisation under these regulations if that person:";

(ii) in paragraph (c) thereof the word "Community" shall be substituted by the word "community";

(iii) in paragraph (d) thereof the words "satisfies the requirements" shall be substituted by the words "satisfies all the applicable requirements";

(b) sub-regulation (2) thereof shall be substituted by the following new sub-regulation:

"(2) In addition to the qualifications established in sub-regulation (1), a person may qualify for a certificate of naturalisation in accordance with these regulations if such person:

(a) renders an exceptional service to the Republic of Malta or to humanity; or

(b) makes an exceptional contribution to the Republic of Malta or to humanity; or

(c) is of exceptional interest to the Republic of Malta."

Amends
regulation 6 of
the principal
regulations.

7. Regulation 6 of the principal regulations shall be amended as follows:

(a) in the marginal note thereof the words "for exceptional services." shall be substituted by the words "on the basis of merit.";

(b) sub-regulation (1) thereof shall be amended as follows:

(i) in paragraph (a) thereof the words "whether such person has been found guilty, declared innocent or otherwise acquitted for any reason by such Court" shall be substituted by the words "whether such person has been found innocent or otherwise acquitted for any reason by

such Court";

(ii) in paragraph (c) thereof the word "is" shall be substituted by the word "are";

(iii) in paragraph (d) thereof the words "has, at any time, been charged with or found guilty" shall be substituted by the words "have, at any time, been charged or found guilty";

(iv) in paragraph (e) thereof the words "has, at any time" shall be substituted by the word "have, at any time";

(v) paragraph (f) thereof shall be substituted by the following new paragraph:

"(f) he or any of his dependants have, at any time, been found guilty of, or at any time during the processing of the application, have been interrogated or are suspected of, or have criminal charges brought against them, for any criminal offence punishable with more than one (1) year imprisonment other than an involuntary offence;"

(vi) in paragraph (g) thereof the words "is or is likely to be, involved" shall be substituted by the words "are or are likely to be involved";

(vii) paragraph (h) thereof shall be substituted by the following new paragraph:

"(h) he or any of his dependants have been denied a visa to a country with whom Malta has visa-free travel arrangements and have not subsequently obtained a visa from such country:

Provided that such applicant may still be considered as eligible to apply if the Agency is satisfied that the visa was not denied on grounds concerning public policy, or serious threats to public security and, or public health under Maltese law;"

(viii) in paragraph (i) thereof the words "is named or listed" shall be substituted by the words "are named or listed".

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Amends
regulation 7 of
the principal
regulations.

8. Regulation 7 of the principal regulations shall be amended as follows:

(a) sub-regulation (1) thereof shall be substituted by the following new sub-regulation:

S.L. 188.01. "(1) Applications, other than a proposal letter, shall be made on such forms as may be prescribed under the Citizenship Regulations.";

(b) sub-regulation (2) thereof shall be substituted by the following new sub-regulation:

"(2) The applications and other accompanying documents shall be completed in the Maltese or English language and, if the original language of a document is not Maltese or English, the document shall be accompanied by an authenticated translation into Maltese or English.";

(c) sub-regulation (4) thereof shall be substituted by the following new sub-regulation:

"(4) All applications submitted for naturalisation in terms of these regulations may be submitted by an applicant, together with his dependants, where applicable, or by such other competent professional as approved by the Agency and duly authorised by the applicant.";

(d) in sub-regulation (5) thereof immediately after the words "confirmed on oath" there shall be added the words ",where applicable,";

(e) in sub-regulation (7) thereof immediately after the words "If an applicant" there shall be added the words "or any of his dependants,".

Deletes
regulations 8, 9
and 10 of the
principal
regulations.

9. Regulations 8 to 10 of the principal regulations shall be deleted.

Amends the title
of Part III of the
principal
regulations.

10. In the title of Part III of the principal regulations the words "Special Provisions applicable to naturalisation for exceptional services by merit" shall be substituted by the words "The Application and Evaluation Process".

Substitutes
regulation 11 of
the principal
regulations.

11. Regulation 11 of the principal regulations shall be

substituted by the following new regulation:

"Special provisions applicable to naturalisation on the basis of merit.

11. (1) The Agency shall carry out on behalf of the Minister the processing of applications for citizenship by naturalisation on the basis of merit.

(2) Every application shall be presented to the Minister through the Agency.

(3) Only applicants in receipt of a letter of approval in principle and any dependants included therein in terms of these regulations are eligible to submit an application for a certificate of citizenship by naturalisation on the basis of merit in terms of regulation 11B."

12. Immediately after regulation 11 of the principal regulations, as substituted, there shall be added the following new regulations:

Adds new regulations to the principal regulations.

"Proposal letter.

11A. (1) An individual applying for naturalisation on the basis of merit in terms of these regulations shall first submit a comprehensive proposal to the Board through the Agency by means of a letter, consisting of the following:

(a) an introduction of the applicant and, if applicable, his dependants together with a comprehensive overview of his achievements;

(b) a detailed description of the exceptional service or exceptional contribution the applicant intends to render or make for the benefit of the Republic of Malta or of humanity in accordance with these regulations, or a detailed description of why he should be considered of exceptional interest to the Republic of Malta;

(c) a detailed plan on how the applicant intends to continue contributing to the Republic of Malta following naturalisation, should the application be successful; and

(d) any other documents the Agency may request following receipt of the proposal letter.

(2) Once the Agency is satisfied with the completeness of the proposal letter but in any case prior to submitting the proposal letter for evaluation by the Board for the purposes of this regulation, the Agency shall:

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S.L. 586.08.

(a) cause due diligence controls to be performed also by third parties, including one (1) or more internationally recognised specialised due diligence service providers, in respect of every applicant and his dependants, where applicable. Such due diligence controls shall be of a four (4) tier nature or more, as the Agency shall determine from time to time and may include security checks to be carried out by law enforcement authorities in accordance with the Data Protection (Processing of Personal Data by Competent Authorities for the Purposes of the Prevention, Investigation, Detection or Prosecution of Criminal Offences or the Execution of Criminal Penalties) Regulations:

Provided that with regard to controls concerning money laundering and terrorism financing risks, law enforcement authorities may use available tools used by pertinent authorities having the necessary authority to conduct such controls;

(b) have all relevant information provided by the applicant verified by one (1) or more independent due diligence service providers, with due regard to anti-money laundering and financing of terrorism legislation and guidelines issued by the competent authorities;

(c) have the background of the applicant and his dependants, if any, verified by one (1) or more independent due diligence service providers;

(d) ensure that an appropriate risk assessment has been carried out as established by the Agency;

(e) request the applicant to produce any further documentation and information that the Agency may require on the applicant and his dependants, where applicable;

(f) request the applicant to pay any applicable non-refundable administrative fees as may be established by the Agency from time to time and such other fees as the case may be.

(3) Once the Agency is satisfied with the completeness and fulfilment of all controls in terms of sub-regulation (2), it shall request the Board to evaluate the proposal submitted by the applicant in terms of these regulations. During this process, the Board may, *inter alia*, request additional documents or information from the applicant, through the Agency, as it deems necessary.

(4) The Board, following the evaluation process, shall have the authority to recommend the proposal to the Agency for approval or rejection based on its assessment. The Agency shall subsequently submit the recommendation of the Board to the Minister for final approval or rejection. The Minister shall not be obliged to provide any reason in support of his decision, which decision shall be final.

(5) If the proposal is rejected by the Minister, the Agency shall notify the applicant in writing of the refusal.

(6) If the proposal is approved in principle by the Minister, the Agency shall issue a letter of approval in principle in favour of the applicant and his dependants where applicable.

Application for
naturalisation on
the basis of merit.

11B. (1) Pursuant to the receipt of the letter of approval in principle in accordance with these regulations, the applicant, together with his dependants, where applicable, may subsequently proceed to file an application for naturalisation on the basis of merit, which application shall be accompanied by:

(a) proof of residence in Malta for a period of at least eight (8) months or more in the period preceding the date of application;

(b) in the case of an applicant who has submitted a proposal letter, proof of title to adequate residential property in Malta, except in the case of an applicant who is a minor:

Provided that where the applicant who has submitted a proposal letter and is not a main applicant, is still a member of the household of his family, the Minister may, if he is satisfied that the applicant is not in a position to purchase or take on lease such property, waive this requirement;

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(c) an indication of the exceptional service or the exceptional contribution rendered or made or to be rendered or made to the Republic of Malta or to humanity, or of the exceptional interest that his naturalisation is or may be to the Republic of Malta together with an endorsement by the designated competent body in terms of these regulations, as may be requested by the Board;

(d) a confirmation of adequate knowledge of Maltese or English; and

(e) proof of all other ties created with the Republic of Malta as at that stage as proposed in the proposal letter.

(2) Upon receipt of an application, the Agency shall:

(a) update its due diligence;

(b) request the applicant to produce any further documentation and information that it may require on the applicant and his dependants, where applicable at its discretion;

(c) request the applicant to pay any applicable non-refundable administrative fees as may be established by the Agency from time to time and such other fees as the case may be.

(3) When the Agency is satisfied with the completeness and fulfilment of all controls in terms of regulation 11B(2), it shall request the Board to evaluate the application submitted by the applicant, and his dependants, where applicable, further to the proposal letter submitted by him. Such further evaluation shall be performed within a reasonable period. During this process, the Board may request additional documents or information from the applicant, through the Agency, as it deems necessary.

(4) The Board, following the evaluation process, shall have the authority to recommend the application to the Agency for approval or rejection. The Agency shall subsequently submit the recommendation to the Minister for final approval or rejection. The Minister shall not be obliged to provide any reason in support of his decision, which decision shall be final.

(5) If the application is rejected by the Minister, the Agency shall notify the applicant in writing with the decision.

(6) If the application is approved by the Minister, the Agency shall issue a letter of approval in favour of the applicant and his dependants, where applicable, which letter of approval may also include certain continuing obligations, where applicable.

13. Regulation 12 of the principal regulations shall be substituted by the following new regulation:

Substitutes regulation 12 of the principal regulations.

"Evaluation Board.

12. (1) The Evaluation Board shall evaluate applications filed in terms of these regulations.

(2) The composition of the Evaluation Board shall vary in accordance with the nature of the application to be evaluated and shall comprise:

(a) a Chairperson to be appointed by the Minister after consultation with the Cabinet of Ministers, who shall be a person who has practiced the profession of advocate for at least seven (7) years; and

(b) two (2) members to be selected by the Chairperson from amongst the members of three (3) panels to be appointed by the Minister, which panels shall include persons having knowledge of sport, culture, the arts, science, research, philanthropy, technology and entrepreneurship and any other area as may be established from time to time.

(3) The Chairperson and the appointed panel members of the Evaluation Board shall hold office for a term of three (3) years and under such conditions as may be established in their letter of appointment, and shall, on the expiration of the term of their office, be eligible to be reappointed.

(4) The Chairperson and the appointed panel members of the Evaluation Board shall be adequately remunerated, as determined by the Minister.

(5) The Chairperson and the panel members of the Evaluation Board shall, before commencing to execute their duties, take an oath in the form established in the Schedule. Such oath shall be taken before, and shall be deposited with, the State Advocate.

(6) When any vacancy in the Evaluation Board occurs, the Minister shall, as soon as practicable, appoint another person to fill the vacancy.

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(7) A member of the Evaluation Board may be removed from office by the Minister upon proof of inability to discharge the functions of his office, whether arising from infirmity of mind or body or any other cause, or for misbehaviour.

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(8) The Chairperson and any member of the Evaluation Board may abstain from sitting or may be challenged for any of the causes mentioned in article 734 of the Code of Organization and Civil Procedure.

(9) Save as otherwise expressly provided by these regulations, the Evaluation Board may make its own rules and otherwise regulate its own procedure.

(10) The Minister shall appoint a Secretary to the Evaluation Board and such other officers as may be necessary from time to time and shall determine their duties.

(11) The Evaluation Board shall have the power to request such technical advice as it may deem necessary for the proper performance of its functions.

(12) Any notice issued by the Board shall be signed by the Chairperson and counter-signed by the Secretary.

(13) The findings of the Evaluation Board shall be signed by the Chairperson and by the Secretary and forwarded to the Minister for his consideration, through the Agency."

Substitutes
regulation 13 of
the principal
regulations.

14. Regulation 13 of the principal regulations shall be substituted by the following new regulation:

"Evaluation
process.

13. (1) The Evaluation Board shall evaluate the proposal letter and applications submitted in terms of these regulations and prepare a recommendation. The Board may, at any stage, interview the applicant in person and any other person it may deem fit.

(2) The Board may also interview the legal representative of the designated competent body endorsing the applicant and any other person it may deem fit."

Substitutes
regulation 14 of
the principal
regulations.

15. Regulation 14 of the principal regulations shall be

substituted by the following new regulation:

"Oath of allegiance.

14. (1) The applicant and his dependants, where applicable, shall be required to take the oath of allegiance, which, in the case of the applicant shall be taken within six (6) months from the issuance of the letter of approval:

Provided that the Minister may extend the said period of six (6) months in exceptional circumstances.

(2) A certificate of naturalisation on the basis of merit in accordance with these regulations may be issued to the applicant and his dependants where applicable, once the oath of allegiance has been taken.

(3) The Agency may suspend or terminate the application process before the Minister issues a certificate of naturalisation, if the applicant fails to satisfy all conditions or if the Minister is no longer satisfied that the applicant is worthy of Maltese citizenship."

16. Regulations 15, 16, 17, 18, 19 and 21 of the principal regulations shall be deleted.

Deletes regulations 15, 16, 17, 18, 19 and 21 of the principal regulations.

17. Regulation 22 of the principal regulations shall be substituted by the following new regulation:

Substitutes regulation 22 of the principal regulations.

"Continuing obligations and annual compliance form.

22. (1) The applicant shall, prior to taking the oath of allegiance, undertake and confirm in writing that he shall continue to observe and fulfil all continuing obligations and such other commitments, in terms of his application and these regulations, or as may otherwise be stipulated by the Minister in the letter of approval as applicable.

(2) The Agency shall ensure the ongoing fulfilment of commitments and continuing obligations, and if necessary, it may request proof of observation of these commitments and obligations and make its own verifications."

18. In regulation 23 of the principal regulations, the words "The Agency shall, from time to time, issue procedural guidelines" shall be substituted by the words "The Agency may, from time to time, issue guidelines".

Amends regulation 23 of the principal regulations.

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Substitutes
regulation 24 of
the principal
regulations.

19. Regulation 24 of the principal regulations shall be substituted by the following new regulation:

"Deprivation of
citizenship.

24. (1) Without prejudice to the provisions of article 14 of the Act, the Minister shall have the power to deprive a person of Maltese citizenship granted under these regulations, if the person:

(a) fails to comply with any material obligation or other commitments established by these regulations or as stipulated in the letter of approval issued by the Agency; or

(b) becomes a threat to national security;
or

(c) is involved in conduct which is seriously prejudicial to the interests of the Republic of Malta.

(2) In such cases the procedure for deprivation of citizenship stipulated in article 14 of the Act and in any regulations made under the Act in respect of such deprivation, shall *mutatis mutandis* apply."

Substitutes
regulation 25 of
the principal
regulations.

20. Regulation 25 of the principal regulations shall be substituted by the following new regulation:

"Good faith and
professional
standards.

25. Persons shall act in good faith, uphold professional standards and maintain high levels of integrity in all matters related to the acquisition of citizenship by naturalisation, ensuring that all actions regarding such naturalisation are conducted responsibly, appropriately and in accordance with the requirements established by the Agency."

Amends
regulation 27 of
the principal
regulations.

21. Regulation 27 of the principal regulations shall be amended as follows:

(a) sub-regulation (1) thereof shall be substituted by the following new sub-regulation:

"(1) Other than for the proper discharge of their duties or functions under these regulations and in terms of the Act, including for the purposes of the due diligence controls referred to in regulation 11A(2) and regulation 11B(2), or as may be otherwise provided in any other law, the Agency, and the officers and employees of the Agency, shall at all times treat all information furnished in accordance with these regulations as confidential and the

Agency shall solely use it for the purposes of these regulations, and shall not directly or indirectly, disclose such information to any other person, except with the consent of the person to whom the information relates. For the purposes of this sub-regulation, "employees" and "officials" shall include former employees and officials.";

(b) in sub-regulation (3) thereof immediately after the words "the Malta Financial Services Authority" there shall be added the words ", the Malta Business Registry".

22. Regulations 30 and 31 of the principal regulations shall be deleted. Deletes regulations 30 and 31 of the principal regulations.

23. The First Schedule to the principal regulations shall be substituted by the following new Schedule: Substitutes the First Schedule to the principal regulations.

**"Schedule
(regulation 12)**

**Form of Oath to be Taken by the Chairperson or a Member of the
Evaluation Board**

I, having been appointed to be Chairperson/Member of the Evaluation Board for the period to, do swear/solemnly affirm that I shall faithfully, fully, impartially and to the best of my ability, discharge the trust and perform the duties devolving upon me by virtue of the said appointment.

So help me God.

.....

Chairperson/Member".

24. The Second, Third and Fourth Schedules to the principal regulations shall be deleted. Deletes the Second, Third and Fourth Schedules to the principal regulations.

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Transitory
provision.

L.N. 159 of
2025.

25. The acquisition, deprivation or retention of Maltese citizenship by naturalisation regulated by the respective law or regulations in force prior to the coming into force of the Granting of Citizenship for Exceptional Services (Amendment) Regulations, 2025 shall continue to be regulated by, and shall remain valid under, the respective law or regulations applicable thereto:

S.L. 188.06.

Provided that any applications submitted under Part IV of the Granting of Citizenship for Exceptional Services Regulations which had not been approved for naturalisation by the Minister under the said Part IV prior to 29 April 2025, shall cease to have effect.
